

HUMAN RESOURCES POLICY DOCUMENT

DISCIPLINARY ACTIONS POLICY

Warnings | Suspension | Termination

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IMPORTANT NOTICE

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1. Introduction and Purpose

Every organization, regardless of its size, industry, or culture, requires a clear and enforceable framework for managing employee conduct and behavior in the workplace. Disciplinary action is not merely a punitive measure — it is a structured, fair, and legally defensible process designed to correct inappropriate behavior, reinforce organizational standards, protect the interests of all employees and the company, and where possible, rehabilitate and retain valuable employees.

This Disciplinary Actions Policy establishes a comprehensive, step-by-step framework that guides managers, HR professionals, and employees through the process of addressing workplace misconduct or performance failures. It ensures consistency, fairness, and transparency across all departments and levels of the organization.

1.1 Why a Disciplinary Policy Matters

Without a clearly defined disciplinary policy, organizations face serious risks including inconsistent treatment of employees (which can lead to discrimination claims), legal exposure due to wrongful termination suits, low employee morale when misconduct goes unaddressed, and reputational harm. A well-documented policy protects both the employer and the employee by ensuring that every step of the process is documented, communicated, and executed with procedural fairness.

1.2 Core Objectives of This Policy

- To establish a fair, consistent, and transparent process for addressing employee misconduct and performance issues.
- To provide employees with clear expectations regarding workplace behavior and the consequences of failing to meet those expectations.
- To protect the organization from legal liability arising from unfair dismissal, discrimination, or procedural irregularity claims.
- To ensure that disciplinary actions are proportionate to the severity and frequency of the misconduct.
- To promote a culture of accountability, respect, and continuous improvement.
- To give employees a genuine opportunity to improve their behavior or performance before escalating action.
- To ensure compliance with applicable labor laws, employment contracts, and collective bargaining agreements.

1.3 Guiding Principles

This policy is guided by the following core principles that underpin all disciplinary decisions:

- **Proportionality:** The disciplinary action taken must be proportionate to the nature and severity of the misconduct or performance failure.
- **Consistency:** Similar offenses must be treated similarly across all employees, irrespective of rank, seniority, or personal relationships.
- **Procedural Fairness:** Every employee is entitled to know the allegations against them, to respond to those allegations, and to be represented if desired.
- **Good Faith:** Investigations and proceedings must be conducted in good faith, without prejudice or predetermined outcomes.
- **Confidentiality:** All disciplinary matters are to be handled with the utmost discretion and respect for all parties involved.
- **Documentation:** Every step of the disciplinary process must be thoroughly documented and retained in employee records.
- **Improvement-Oriented:** Wherever feasible, the goal is correction and improvement rather than punishment.

2. Scope and Applicability

This policy applies to all individuals engaged by the organization in any capacity, including but not limited to full-time employees, part-time employees, temporary and contract workers, probationary employees, trainees and interns, employees on deputation or secondment, and remote or work-from-home employees. The policy applies irrespective of designation, department, reporting structure, or location.

2.1 What This Policy Covers

This policy addresses conduct that falls short of the standards expected by the organization. It covers a wide range of issues including poor attendance and punctuality, substandard work performance, inappropriate workplace behavior, violations of company policies, ethical breaches, and criminal conduct. Specific examples are elaborated in Section 4.

2.2 What This Policy Does Not Cover

This policy does not replace or supersede applicable local, state, or national labor laws and employment statutes. In jurisdictions where statutory requirements differ from this policy, applicable

law will take precedence. Additionally, this policy should be read in conjunction with the organization's Code of Conduct, Anti-Harassment Policy, Attendance Policy, IT Usage Policy, and any applicable collective bargaining agreements.

3. Roles and Responsibilities

3.1 Human Resources Department

The HR Department plays a central, advisory, and administrative role in all disciplinary proceedings. Specifically, HR is responsible for:

- Advising managers on the appropriate level of disciplinary action for specific conduct.
- Ensuring all disciplinary procedures comply with applicable law and internal policy.
- Conducting or supervising investigations into allegations of misconduct.
- Maintaining confidential records of all disciplinary actions in employee files.
- Reviewing and approving all formal written warnings, suspension notices, and termination letters before issuance.
- Training managers and supervisors on the application of this policy.
- Monitoring trends in disciplinary actions across departments to identify systemic issues.

3.2 Managers and Supervisors

Managers and supervisors serve as the primary point of contact for identifying and addressing behavioral or performance issues. Their responsibilities include:

- Identifying issues early and addressing them proactively through informal coaching.
- Initiating formal disciplinary proceedings when informal measures have failed or the misconduct is sufficiently serious.
- Conducting investigatory meetings and documenting findings.
- Issuing verbal and written warnings in consultation with HR.
- Maintaining impartiality and confidentiality throughout the process.
- Following up after disciplinary actions to monitor improvement and support the employee.

3.3 Employees

All employees are expected to:

- Be aware of and comply with the organization's Code of Conduct and all applicable policies.
- Participate honestly and in good faith in any investigatory or disciplinary proceedings.

- Disclose relevant information when requested during an investigation.
- Seek clarification from HR or their manager if they are uncertain about expected standards.
- Exercise their right to appeal if they believe a disciplinary action was unfair or disproportionate.

3.4 Investigating Officer

Where a formal investigation is warranted, an Investigating Officer (IO) will be appointed. The IO may be an HR representative, a senior manager from a different department, or an external investigator. The IO is responsible for objectively gathering and analyzing evidence, interviewing witnesses, and producing an investigation report with findings and recommendations.

4. Classification of Misconduct

Misconduct is broadly categorized into two levels: Minor Misconduct and Gross Misconduct. This classification determines the starting point for disciplinary action, though the organization reserves the right to treat any offense at a higher level depending on the circumstances, severity, frequency, and impact of the conduct.

4.1 Minor Misconduct

Minor misconduct refers to less serious breaches of conduct that, while unacceptable, do not in isolation warrant severe disciplinary action. However, repeated instances of minor misconduct may escalate into gross misconduct. Examples of minor misconduct include:

- Repeated late arrivals to work or late returns from breaks without valid justification.
- Unauthorized or unexplained absences of short duration.
- Failure to follow reasonable instructions from a supervisor.
- Poor quality of work that falls below expectations despite prior guidance.
- Minor insubordination, such as speaking disrespectfully to a colleague.
- Excessive personal use of company internet, phone, or email during work hours.
- Failure to maintain cleanliness in shared work areas.
- Misuse of minor company resources (e.g., printing personal documents using company printer).
- Minor dress code violations.
- Failure to submit reports or assignments on time without prior communication.

4.2 Gross Misconduct

Gross misconduct refers to acts so serious that they fundamentally damage the employment relationship. Gross misconduct may result in immediate suspension pending investigation and, upon confirmation, summary dismissal without prior warnings. Examples include:

- Theft, fraud, or deliberate falsification of records, expense claims, or timesheets.
- Physical assault or threatening behavior directed at a colleague, client, or visitor.
- Sexual harassment, including unwanted physical contact, inappropriate comments, or sharing offensive material.
- Bullying, including persistent intimidation, humiliation, or undermining of an individual.
- Serious insubordination, including refusal to carry out a lawful and reasonable management instruction.
- Under the influence of alcohol or illegal substances while on duty.
- Deliberate damage to or destruction of company property.
- Disclosure of confidential company information or trade secrets to unauthorized parties.
- Serious breach of health and safety regulations that endangers life.
- Discrimination based on race, gender, religion, disability, sexual orientation, age, or any other protected characteristic.
- Unauthorized access to, or tampering with, computer systems, data, or networks (cybercrime).
- Working for a direct competitor without written consent (breach of conflict-of-interest policy).
- Making false allegations of misconduct against a colleague or manager in bad faith.
- Criminal conviction for an offense that directly impacts the employee's ability to perform their role or reflects on the organization.

Important Note:

The examples listed above are illustrative, not exhaustive. The organization reserves the right to treat conduct not explicitly listed as misconduct if it conflicts with the organization's Code of Conduct, values, or applicable law.

5. The Disciplinary Process

The disciplinary process is designed to be fair, structured, and progressive. It typically follows a sequence of escalating steps, though the organization may begin at any step depending on the severity of the misconduct. The process is outlined below:

5.1 Step 1: Informal Counselling and Coaching

Before initiating any formal disciplinary process, a manager should attempt to resolve minor issues through an informal conversation. This is not a disciplinary action and will not appear on the employee's formal record. The purpose is to bring the issue to the employee's attention, understand any underlying factors, and give the employee an opportunity to correct the behavior without the formality or stigma of a disciplinary proceeding.

5.1.1 How Informal Counselling Works

The manager arranges a private, one-on-one meeting with the employee. The specific behavior or performance issue is discussed clearly and without blame. The employee is given a full opportunity to explain their perspective. Agreed corrective actions and a timeframe for improvement are noted (though not formally filed). The manager documents the conversation in their own records as a reference.

Real-World Example:

An employee, Riya, has been arriving 15-20 minutes late to work three times in a single month. Her manager, instead of immediately issuing a warning, calls Riya aside and inquires about the pattern. Riya explains she has been dealing with a family health issue and asks for a temporary adjustment to her start time. The manager and Riya agree to a revised schedule for four weeks, after which the original schedule resumes. The lateness stops and no formal action is required.

5.2 Step 2: Verbal Warning

If informal counselling has not resulted in improvement, or if the initial offense is significant enough to warrant a more formal response, the next step is a Verbal Warning. Despite the name, a verbal warning is a formal action and must be documented.

5.2.1 Issuing a Verbal Warning

1. The manager, in consultation with HR, decides that a verbal warning is appropriate.
2. A formal meeting is scheduled with the employee. The employee is notified in advance of the subject of the meeting and their right to bring a support person or union representative.
3. During the meeting, the specific misconduct or performance issue is clearly explained, with reference to dates, incidents, and applicable policies.
4. The employee is given the opportunity to respond, explain, and present any mitigating circumstances.

5. The manager formally states that a verbal warning is being issued and explains what improvement is expected and by when.
6. After the meeting, the manager completes a Verbal Warning Form, which is reviewed and filed by HR. The employee receives a copy.
7. The verbal warning remains active on the employee's record for a specified period (typically 3-6 months) and is disregarded if no further issues arise within that period.

5.2.2 Verbal Warning — Key Information

Attribute	Details
Trigger	First or second instance of minor misconduct; failure to improve after informal counselling
Form Required	Yes — Verbal Warning Form (HR-VW-001)
Active Period	3 to 6 months
Right to Representation	Yes — employee may bring a colleague or union rep
Right to Appeal	Yes — within 5 working days of issuance
HR Involvement	Must review and file; advises on appropriateness

Real-World Example:

Aditya, a software developer, submits three consecutive project reports with significant errors, despite receiving feedback after the first. His manager holds a formal meeting, explains the specific errors and their impact on the team, and issues a verbal warning. Aditya is given a 60-day Performance Improvement Plan with weekly check-ins. The verbal warning is filed with HR.

5.3 Step 3: First Written Warning

A First Written Warning is issued when the verbal warning has not produced the required improvement, when a new but related instance of misconduct occurs within the active period of the verbal warning, or when the initial offense is serious enough to skip directly to a written warning.

5.3.1 Issuing a First Written Warning

8. The manager formally notifies the employee in writing of the scheduled disciplinary meeting, specifying the nature of the alleged misconduct and the employee's right to representation.
9. The meeting is conducted with HR present or available. The employee is given full opportunity to respond.
10. If the manager (in consultation with HR) determines a written warning is appropriate, a formal Written Warning Letter is prepared.

11. The letter details the misconduct, references prior actions (including verbal warning if applicable), specifies improvement required, states the review period, and warns that further misconduct may lead to a Final Written Warning or suspension.
12. The employee signs to acknowledge receipt (not necessarily agreement). If the employee refuses to sign, a witness signs and the letter is sent via certified email.
13. The warning is placed on the employee's HR file and remains active for 6 to 12 months.

Real-World Example:

Despite receiving a verbal warning, Sunita continues to be absent without prior approval on three more occasions in a two-month period. A formal disciplinary meeting is convened. HR and her department head are present. The evidence — including attendance records and the earlier verbal warning — is presented. Sunita explains a personal situation but acknowledges the violations. A First Written Warning is issued, requiring perfect attendance for the next three months, with an allowance only for pre-approved or medically certified leave.

5.4 Step 4: Final Written Warning

A Final Written Warning is the last formal step before suspension or termination. It signals to the employee that their employment is at serious risk if the behavior or performance does not improve immediately and is sustained. It may be issued when prior warnings have failed to produce improvement, or directly in cases of serious (but not gross) misconduct.

5.4.1 Contents of a Final Written Warning

- A summary of all prior disciplinary actions.
- A detailed account of the current misconduct, including dates, facts, and any supporting evidence.
- A clear statement that this is a Final Written Warning.
- Specific, measurable improvement targets to be met within a defined timeframe.
- An explicit statement that failure to meet these targets, or any further misconduct, will result in suspension or termination.
- The employee's right to appeal and the process for doing so.

Real-World Example:

After receiving a First Written Warning for poor performance, Rajesh improves temporarily but then reverts to the same low-quality output within the active warning period. A Final Written Warning is issued with a 60-day Performance Improvement Plan. The letter explicitly states that any further performance failure will result in termination. Rajesh is also offered coaching sessions through the Learning and Development team.

6. Suspension

Suspension is the temporary removal of an employee from the workplace, either with or without pay, pending the outcome of an investigation or as a disciplinary sanction. Suspension is a serious step and should only be used when genuinely warranted.

6.1 Types of Suspension

6.1.1 Precautionary (Investigatory) Suspension

This type of suspension is not a disciplinary action in itself. It is used to remove an employee from the workplace while an investigation into serious allegations is conducted. The purpose is to protect the integrity of the investigation, prevent interference with witnesses or evidence, protect the employee from potential workplace harm, and protect colleagues from potential harm by the accused employee.

Important: Precautionary suspension should be with full pay unless the employment contract or applicable law provides otherwise. It should be as short as possible and reviewed regularly. The employee must be informed in writing that the suspension is precautionary and not an indication of guilt.

6.1.2 Disciplinary Suspension

Disciplinary suspension is a formal sanction and may be with or without pay, as provided under the employee's contract and applicable labor law. It is applied after a disciplinary process has been completed and a decision taken that suspension is the appropriate sanction. It typically lasts between 1 and 10 working days.

6.2 The Suspension Process

14. The manager, in consultation with HR, makes the decision to suspend.
15. The employee is informed in person and then in writing. The notification must include the reason for suspension, whether it is precautionary or disciplinary, the duration (or 'pending investigation'), whether it is paid or unpaid, and instructions regarding company property (e.g., access cards, devices).
16. Access to company systems, premises, and resources is restricted as appropriate.

17. The HR Department contacts the employee regularly during suspension to provide updates and ensure the employee's well-being.
18. At the conclusion of the suspension or investigation, the outcome is communicated to the employee in writing.

6.3 Rules Governing Suspension

- Suspension should not be used as a punitive measure before the facts are established.
- The employee retains all contractual benefits during a paid suspension.
- Suspension should be proportionate — suspending a first-time minor offender for 5 days without pay would be disproportionate.
- All suspensions must be approved by at least the HR Manager and the Department Head.
- The employee retains the right to appeal a disciplinary suspension.

Real-World Example:

Priya, a finance executive, is alleged to have accessed and shared confidential salary data with colleagues. Given the sensitivity and potential for interference with witnesses (as some of those colleagues are involved in her team), the company issues a precautionary suspension with pay while the investigation is conducted. Three weeks later, after interviews with Priya and the relevant colleagues, it is established that Priya did share the data inadvertently while demonstrating a system feature. A Final Written Warning is issued, and Priya returns to work. Had Priya been immediately terminated without investigation, the company would have faced serious legal exposure.

7. Termination

Termination — the ending of an employee's contract of employment by the employer — is the most severe disciplinary sanction available. Given its significant impact on the employee's livelihood, it must be handled with rigorous adherence to procedure, documented evidence, proportionality, and legal compliance.

7.1 Types of Termination

7.1.1 Termination for Cause (Disciplinary Dismissal)

This occurs when an employee is dismissed due to misconduct, sustained performance failure, or breach of contract. It may follow a series of prior warnings (for repeated or ongoing issues) or may occur without prior warnings in cases of gross misconduct. Common grounds include:

- Persistent failure to improve after Final Written Warning.
- A further serious disciplinary offense while a Final Written Warning is active.
- Confirmed gross misconduct following investigation.
- Inability to perform the essential functions of the role despite support.

7.1.2 Summary Dismissal (Instant Termination for Gross Misconduct)

In cases of confirmed gross misconduct, the organization may dismiss an employee without notice, without pay in lieu of notice, and without following the progressive steps of the disciplinary process. This is known as summary dismissal. However, even in cases of gross misconduct, the organization must always conduct a fair investigation, hold a disciplinary hearing, and allow the employee to respond before taking the decision to summarily dismiss. Bypassing these steps — even for clear-cut gross misconduct — creates legal liability.

7.2 The Termination Process

The following process applies to all terminations, whether following progressive discipline or for gross misconduct:

Step	Action	Responsible Party
1	Evidence Gathering & Investigation	Investigating Officer / HR
2	Issue Show-Cause Notice / Charge Sheet	HR / Department Head
3	Employee Response to Charges	Employee (within stated deadline)
4	Disciplinary Hearing	HR + Department Head + Senior Manager
5	Deliberation and Decision	HR + Management + Legal (if required)
6	Issue Termination Letter	HR
7	Exit Process and Final Settlement	HR + Finance + IT
8	Right to Appeal Communicated	HR

7.2.1 The Show-Cause Notice / Charge Sheet

Before any disciplinary hearing can take place, the employee must be formally informed in writing of the charges against them. This document — variously called a Show-Cause Notice, Charge Sheet, or Notice of Allegations — must include:

- A clear, specific, and detailed description of the alleged misconduct or performance failure.
- Reference to the specific policies, rules, or contractual obligations alleged to have been violated.
- Dates, times, locations, and names of witnesses where applicable.
- A request for the employee's written response within a specified timeframe (minimum 3 working days, typically 5-7 working days).
- A statement that a disciplinary hearing will be scheduled upon receipt of the response.
- Information about the employee's right to representation.

7.2.2 The Disciplinary Hearing for Termination

The disciplinary hearing for termination must be conducted by a panel of at least two people: typically an HR representative and a senior manager who is independent of the incident (i.e., not the direct manager involved in the investigation). The employee has the right to:

- Be given at least 48 hours' advance notice of the hearing.
- Review all evidence that will be presented at the hearing.
- Be accompanied by a colleague or union representative.
- Present their case, call witnesses, and challenge the evidence against them.
- Submit additional documentation or a written response.

7.3 Termination Letter

Upon a decision to terminate, a formal Termination Letter must be issued. This letter must include:

- The date of the decision and effective date of termination.
- A clear statement of the reason(s) for termination.
- Reference to the disciplinary process followed (dates of warnings, hearings, etc.).
- Details of notice period (or payment in lieu) if applicable.
- Information on final salary, accrued leave encashment, and other dues.
- Instructions for return of company property.
- Any post-employment obligations (e.g., non-disclosure, non-compete if applicable).
- Information on the employee's right to appeal.

Real-World Example:

Vikram, a senior sales executive, was found to have falsified customer visit reports over a three-month period to claim field allowances he was not entitled to. An investigation was conducted, a charge sheet issued, and a disciplinary hearing held. Despite Vikram's explanation that 'everyone does it,' the panel found sufficient evidence of deliberate fraud. Given the seriousness of the offense, the company issued a summary dismissal without notice. The termination letter cited the specific policy violations and the fraudulent acts, and

informed Vikram of his 10-day window to appeal. His final settlement was processed within 30 days, though the fraudulently claimed allowances were offset from his dues.

8. The Investigation Process

A fair, thorough, and impartial investigation is the foundation of any defensible disciplinary action. This section provides a detailed guide to conducting workplace investigations.

8.1 When an Investigation Is Required

- Allegations of gross misconduct (harassment, theft, fraud, assault, etc.).
- Any situation where the facts are disputed.
- Anonymous complaints received through the grievance channel.
- Where there is potential criminal conduct.
- Where the outcome could result in suspension or termination.

8.2 Appointing an Investigating Officer

The Investigating Officer (IO) must be:

- Independent — not involved in the incident under investigation.
- Of sufficient seniority and experience to conduct the investigation fairly.
- Trained in investigatory interviewing and evidence handling.
- Free from conflicts of interest with any party involved.

The IO's role is to establish facts, not to determine guilt. The IO prepares an investigation report, but the disciplinary decision is made by a separate authority (the disciplinary panel).

8.3 Steps in the Investigation

19. Initial Assessment: Determine scope, identify key witnesses, and review any immediately available evidence.
20. Evidence Collection: Gather documentary evidence including emails, access logs, CCTV footage, performance records, financial data, and any other relevant material.
21. Witness Interviews: Interview all relevant witnesses individually and in confidence. Provide each witness with a written summary of their interview to review and sign.

22. Subject Interview: Interview the employee who is the subject of the investigation. Inform them of their rights, including the right to representation and the right to respond to specific allegations.
23. Analysis: Assess the credibility of evidence and witnesses. Apply the balance of probabilities standard: is it more likely than not that the misconduct occurred?
24. Investigation Report: Prepare a written report setting out the facts found, the evidence reviewed, and a recommendation as to whether there is a case to answer.

8.4 Confidentiality During Investigation

All parties involved in an investigation — witnesses, investigators, HR staff, and management — are required to maintain strict confidentiality. Breach of investigation confidentiality may itself constitute misconduct. Employees should be advised not to discuss the investigation with colleagues or on social media. Information about the investigation should only be shared on a need-to-know basis.

9. Employee Rights Throughout the Disciplinary Process

The organization is firmly committed to ensuring that all employees are treated with dignity and fairness throughout any disciplinary process. The following rights are guaranteed to every employee:

9.1 Right to Be Informed

An employee must be clearly informed of the specific allegations against them, the evidence that exists, the potential consequences, and the process that will be followed. Vague or general accusations are not acceptable.

9.2 Right to Representation

Employees have the right to be accompanied by a trade union representative, a colleague employed by the organization, or (in some jurisdictions) a legal representative at any formal disciplinary meeting or hearing. This representative may support the employee and speak on their behalf but may not answer questions directed at the employee.

9.3 Right to Respond

Before any formal disciplinary action is taken, the employee must be given a meaningful opportunity to respond to the allegations. This means providing the employee with the relevant evidence in advance, allowing adequate preparation time, and genuinely considering the employee's response before making a decision.

9.4 Right to Appeal

Every formal disciplinary action — verbal warning, written warning, final written warning, suspension, or termination — may be appealed by the employee. The appeal process is detailed in Section 11.

9.5 Right Against Double Jeopardy

An employee cannot be disciplined twice for the same incident. Once a disciplinary decision has been made and communicated, the same offense cannot be revisited to impose a harsher sanction, unless new evidence comes to light.

9.6 Right to a Timely Process

Investigations and disciplinary proceedings should be conducted and concluded in a timely manner. Excessive delays are unfair to the employee and may weaken the organization's position. As a guideline, investigations should be completed within 4 weeks, and disciplinary hearings should be held within 2 weeks of the investigation's conclusion.

10. Special Situations

10.1 Disciplinary Action During Probation

The disciplinary process applies to employees during their probationary period. However, in most jurisdictions, the standard of procedural fairness expected for probationary employees is somewhat lower than for permanent employees — principally because probation exists precisely to evaluate suitability. That said, minimum fairness standards (right to be informed, right to respond) must still be observed. A probationary employee found guilty of gross misconduct may be dismissed with less extensive prior warning but must still undergo a basic investigation and hearing.

10.2 Disciplinary Action While on Leave

A disciplinary process may be initiated (and potentially concluded) while an employee is on approved leave, including sick leave or maternity/paternity leave. However, HR must take particular care:

- Extend deadlines reasonably to accommodate the employee's situation.
- Accommodate the employee's participation through video/telephone if necessary.
- Avoid any action that could be construed as victimization of an employee for exercising their leave rights.

10.3 Collective Misconduct

Where multiple employees are involved in the same incident of misconduct, each employee's case must be assessed individually and on its own merits. Group disciplinary hearings are generally not appropriate. The roles, levels of participation, and individual circumstances of each employee must be separately considered.

10.4 Whistleblowers and Protected Disclosures

Employees who report misconduct in good faith through the organization's whistleblower channel are protected from retaliation. Any disciplinary action initiated against an employee shortly after a protected disclosure will be subject to heightened scrutiny to ensure it is not retaliatory. HR must consult with Legal before initiating disciplinary action against a recent whistleblower.

10.5 Mental Health and Misconduct

Where an employee's misconduct may be related to a diagnosed or suspected mental health condition, the disciplinary process must be paused or adapted accordingly. HR should obtain an occupational health assessment if there is reason to believe mental health is a factor. The organization has a duty to make reasonable adjustments before resorting to disciplinary action where mental health is involved.

11. The Appeal Process

Every employee has the right to appeal any formal disciplinary action within 5 working days of receiving written notification of the decision. The purpose of the appeal process is to provide a fair and independent review of the disciplinary decision to ensure it was proportionate, procedurally fair, and based on sufficient evidence.

11.1 Grounds for Appeal

- The disciplinary sanction is disproportionate to the misconduct.
- New evidence has come to light that was not considered during the original hearing.
- The disciplinary process was procedurally flawed (e.g., employee was denied representation, insufficient notice was given).
- There was bias or a conflict of interest on the part of the investigating or deciding officer.
- The employee believes they were treated differently from other employees in similar circumstances.

11.2 The Appeal Process

25. The employee submits a written notice of appeal to HR, specifying the grounds for appeal and providing any supporting documents or arguments.
26. HR acknowledges receipt within 2 working days and appoints an Appeals Officer — a senior HR representative or a senior manager who was not involved in the original disciplinary proceedings.
27. The Appeals Officer reviews all documentation from the original investigation and hearing, considers any new evidence or arguments presented by the employee, and may conduct additional interviews if necessary.
28. A written decision on the appeal is issued within 15 working days of the appeal submission.
29. The Appeals Officer may uphold the original decision, reduce the sanction, or overturn the sanction entirely.
30. The decision of the Appeals Officer is final within the organization's internal process. Nothing in this policy prevents an employee from pursuing external legal remedies.

Real-World Example:

An employee dismissed for alleged theft appeals on the grounds that the key CCTV footage cited in the hearing was inconclusive, and that another employee with identical access to the affected area was not investigated. The Appeals Officer reviews the footage and agrees it is insufficient to establish guilt beyond a balance of probabilities. The dismissal is overturned, and the employee is reinstated with full back pay. A fresh, more thorough investigation is ordered. This example illustrates the critical importance of the appeal process as a safety valve against unjust outcomes.

12. Documentation and Record-Keeping

Thorough documentation is both a legal requirement and a best practice in managing disciplinary matters. Every step of the disciplinary process must be documented, and all records must be retained securely.

12.1 Required Documentation

Document Type	When Required	Retention Period
Informal Counselling Note	After informal coaching session	1 year
Verbal Warning Form (HR-VW-001)	Upon issuance of verbal warning	Duration of active period + 1 year
Written Warning Letter	Upon issuance of first/final written warning	Duration of active period + 2 years
Suspension Notice	Upon suspension	5 years
Investigation Report	After investigation completion	7 years
Hearing Notes / Minutes	After each disciplinary hearing	7 years
Termination Letter	Upon termination	Permanent
Appeal Decision Letter	Upon conclusion of appeal	7 years

12.2 Storage and Access

All disciplinary records must be stored in the employee's confidential HR file. Access is restricted to: the employee themselves (upon written request), the HR team, the employee's line manager (limited access), and Senior Management on a need-to-know basis. Disciplinary records are not visible to the employee's colleagues and must never be used in any other context (e.g., shared with future employers without the employee's consent, except as required by law).

12.3 Spent Warnings

Warnings that have passed their active period and have not been followed by further misconduct are considered 'spent.' They remain in HR records for the retention period above, but for the purposes of any subsequent disciplinary process, they are not counted as prior warnings and cannot be used to

escalate future actions. The employee may request a written confirmation from HR that a warning has been spent.

13. Training and Communication

The effective implementation of this policy depends on all stakeholders — managers, HR, and employees — being well-informed about its contents and their respective responsibilities.

13.1 Manager Training

All managers and supervisors are required to complete HR's Disciplinary Process Training module before conducting any disciplinary proceedings. The training covers applying this policy correctly, conducting investigation meetings, avoiding procedural errors, recognizing bias, documentation requirements, and supporting employees under disciplinary process. Refresher training is conducted annually and upon any significant policy revision.

13.2 Employee Awareness

This policy, along with the Code of Conduct, is provided to every employee at the time of onboarding. Employees are required to sign an acknowledgement that they have received, read, and understood the policy. The policy is available at all times on the company intranet and HR portal.

14. Legal Compliance and External Bodies

This policy is designed to comply with all applicable employment laws. In India, relevant legislation includes the Industrial Disputes Act, 1947 (which governs retrenchment and disciplinary proceedings for industrial establishments), the Industrial Employment (Standing Orders) Act, 1946 (which requires certified standing orders governing service conditions), the Shops and Establishments Acts of various states, the Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013 (POSH Act), and the applicable Factories Act provisions if applicable.

For organizations operating globally, this policy must be adapted to comply with local employment laws in each jurisdiction. HR is responsible for maintaining jurisdiction-specific addenda to this policy.

14.1 External Dispute Resolution

Employees who believe they have been unfairly disciplined or dismissed and who have exhausted the internal appeal process may pursue remedies through appropriate external bodies such as the Labour Commissioner, Labour Court, Industrial Tribunal (for establishments covered under the Industrial Disputes Act), or other statutory bodies as applicable. The organization will cooperate fully with any statutory investigation or conciliation process.

15. Anti-Retaliation and Protections

The organization strictly prohibits retaliation against any employee who:

- Reports misconduct by a colleague or manager in good faith.
- Participates in a disciplinary investigation as a witness.
- Exercises their right to appeal a disciplinary decision.
- Seeks advice from HR about their rights under this policy.

Retaliation — including demotion, hostile treatment, exclusion, or any adverse employment action — against an employee for any of the above reasons is itself misconduct and will be subject to disciplinary action, including termination.

16. Frequently Asked Questions

Q: Can I be dismissed without any prior warnings?

A: Yes, in cases of gross misconduct (such as fraud, assault, or theft), the organization may proceed directly to dismissal after a fair investigation and hearing, even without prior warnings. However, the organization must still follow a fair process, which includes notifying you of the allegations, giving you an opportunity to respond, and holding a disciplinary hearing.

Q: Do I have to attend a disciplinary hearing?

A: You are strongly encouraged to attend and participate. Failure to attend without good reason may result in the hearing proceeding in your absence. If you cannot attend for a legitimate reason (e.g., illness), contact HR immediately to arrange an alternative date.

Q: Can my warning be removed from my record early?

A: Warnings are retained on record for their active period. In exceptional circumstances, where there has been exceptional improvement and the warning was issued for a minor, isolated incident, you may make a written request to HR for early removal. This is at management's discretion and will not be routinely granted.

Q: What if I disagree with the investigation's findings?

A: You may challenge the findings at the disciplinary hearing and present counter-evidence or arguments. If the disciplinary decision is made against you, you retain the right to appeal.

Q: Can I record my disciplinary meeting?

A: The organization does not permit audio or video recordings of disciplinary meetings by employees without prior written consent from all parties. However, both the employee and the HR representative will take notes, and the employee is entitled to receive a copy of the meeting notes.

Q: What happens if I am suspended — will my colleagues know why?

A: Disciplinary matters are strictly confidential. Colleagues will only be told what is necessary (e.g., that you are on approved leave), not the reasons. Any breach of confidentiality by managers or HR is itself subject to disciplinary action.

Q: I am on probation. Does this policy apply to me?

A: Yes, this policy applies to all employees, including those on probation. However, the procedural requirements during probation are somewhat different — please consult HR for guidance.

17. Policy Review and Amendments

This policy will be reviewed at least annually by the HR Department and updated as necessary to reflect changes in applicable law, organizational changes, or emerging best practices. Material changes to the policy will be communicated to all employees with at least 30 days' notice. Minor

administrative updates may be made without advance notice, provided they do not disadvantage employees. The current version of this policy supersedes all previous versions.

Appendix A: Summary of Disciplinary Action Levels

Action Level	Typical Trigger	Active Period	Effect of Recurrence
Informal Counselling	First minor offense	N/A (not formal)	Triggers Verbal Warning
Verbal Warning	Repeat minor offense after counselling	3–6 months	Triggers First Written Warning
First Written Warning	No improvement after verbal warning	6–12 months	Triggers Final Written Warning
Final Written Warning	Serious misconduct / repeat offense	12 months	Suspension or Termination
Suspension	Serious/gross misconduct, investigation needed	As determined	May lead to Termination
Termination	Gross misconduct / sustained failure	Permanent	N/A

Appendix B: Key Forms and Templates

- HR-VW-001 — Verbal Warning Form
- HR-WW-002 — First Written Warning Template
- HR-FWW-003 — Final Written Warning Template
- HR-SUS-004 — Suspension Notice (Precautionary)
- HR-SUS-005 — Suspension Notice (Disciplinary)
- HR-INV-006 — Investigation Report Template
- HR-CHG-007 — Charge Sheet / Show-Cause Notice Template
- HR-TER-008 — Termination Letter Template
- HR-APP-009 — Appeal Submission Form
- HR-APP-010 — Appeal Decision Letter Template

— END OF POLICY DOCUMENT —

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